

Abdul Hameed Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 March 2018 · Writ-C No. 8153 of 2018 · Writ-C No. 8153 of 2018 · **Writ dismissed; petitioner left to Clause 6.5 bill-accuracy remedy.**

HEADNOTE

A consumer disputing the correctness and accuracy of an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. A writ petition on that grievance is not entertainable and stands dismissed, leaving the consumer free to approach the competent authority.

FACTUAL SUMMARY

Abdul Hameed Khan petitioned the Allahabad High Court to challenge the correctness and accuracy of a bill for consumption of electrical energy. The State and other respondents were impleaded; counsel for the petitioner and for respondents 3 to 5 were heard. The Court did not examine the disputed bill on merits and treated the grievance as a statutory billing-accuracy dispute under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-accuracy-alternative-remedy

HOLDING

A writ petition challenging only the correctness and accuracy of an electricity bill is not entertainable, because Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy before the competent authority; the petition stands dismissed, leaving the consumer free to avail that remedy if so advised. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing the correctness and accuracy of an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. A writ petition on that grievance is not entertainable and stands dismissed, leaving the consumer free to approach the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND ACCURACY OF THE ELECTRICITY BILL

Left open for the competent authority under Clause 6.5. ¶ 1